The Honorable Richard A. Jones

UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

CHEYANNE ROSA DIXSON, Plaintiff, v. CITY OF ISSAQUAH POLICE DEPARTMENT, MAYOR MARY LOU PAULY, WALLY BOBKIEWICZ, DOES 1-25, Defendants.	CASE NO. 2:22-cv-01771-RAJ DEFENDANT CITY OF ISSAQUAH POLICE DEPARTMENT'S FIRST AMENDED ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT FOR DECLARATORY RELIEF AND DAMAGES

Defendant City of Issaquah Police Department ("IPD") hereby answers and asserts affirmative defenses to Plaintiff's Complaint for Declaratory Relief and Damages ("Complaint") filed by Plaintiff Cheyanne Rosa Dixson ("Plaintiff").

ANSWER

I. INTRODUCTION

1. IPD admits the allegations in Paragraph 1.

2. IPD admits the allegations in Paragraph 2.

3. IPD admits the allegations in Paragraph 3.

4. IPD denies the allegations in Paragraph 4, as IPD determined there was no reasonable accommodation that Plaintiff could be offered on an ongoing basis that would enable Plaintiff to safely perform her duties without creating an undue hardship on IPD.

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5. Paragraph 5 states legal claims to which no response is required. To the extent an answer is required, IPD denies the same.

II. JURISDICTION AND VENUE

2.1 IPD admits the allegations in Paragraph 2.1.

2.2 IPD admits the allegations in Paragraph 2.2.

2.3 The allegations in Paragraph 2.3 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD admits that 28 U.S.C. §2201-02 permits federal courts to grant "necessary or proper relief based on a declaratory judgment," and that Fed. R. Civ. P. 57 and 65 permit federal courts to grant declaratory and injunctive relief, respectively, but otherwise denies that Plaintiff's disputed claims are "authorized" under these provisions.

III. PARTIES

3.1 IPD lacks sufficient information to admit or deny whether Plaintiff is presently a resident of Washington State, who lives in King County. IPD otherwise admits the allegations in Paragraph 3.1.

3.2 IPD admits that the City of Issaquah, Washington (the "City") is a municipality in King County, Washington, and employed Plaintiff during the time the alleged actions in the Complaint took place. IPD admits that Defendants Mayor Pauly and Wally Bobkiewicz were employed by the City and acting in their official capacities at all times relevant to this lawsuit, and that they are residents of King County, Washington.

3.3 IPD lacks sufficient information to admit or deny the allegations in Paragraph 3.3.

IV. FACTS

4.1 IPD admits that Governor Inslee issued Proclamation 21014 on or around August 9, 2021, and answers that the content of the proclamation speaks for itself. IPD further admits that the City of Issaquah issued an administrative order regarding "Update: COVID-19 (Coronavirus) Protection Plan & Policy Updates – July 1, 2021" on or around June 30, 2021, and answers that the content of the administrative order speaks for itself. Except as so admitted, IPD denies the remaining

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allegations in Paragraph 4.1.

4.2 IPD admits the allegations in Paragraph 4.2.

4.3 IPD answers that the content of the October 15, 2021 letter from Human Resources Director Stephanie Johnson to Plaintiff speaks for itself. IPD denies any suggestion in Paragraph 4.3 that its actions were motivated by intentions to "insult" or "coerce" Plaintiff into violating her beliefs. Except as so admitted, IPD denies the remaining allegations of Paragraph 4.3.

4.4 IPD answers that the content of the February 2, 2022 email referenced in Paragraph 4.4 speaks for itself. Except as so answered, IPD denies the remaining allegations of Paragraph 4.4.

4.5 IPD answers that the referenced email correspondence and separation date were dated February 15, 2022, not February 14, 2022, as alleged. IPD further answers that the content of the correspondence speaks for itself. Except as so answered, IPD denies the remaining allegations of Paragraph 4.5.

4.6 IPD answers that the content of the Mayor's February 15, 2022 correspondence speaks for itself. Except as so answered, IPD denies the remaining allegations of Paragraph 4.5.

4.7 The allegations in Paragraph 4.7 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD denies the allegations in Paragraph 4.7, as it erroneously assumes applicability of RCW 41.12.090 and Rule 15 of the Issaquah Civil Service Rules to the non-disciplinary action taken here. IPD further denies these allegations because, even if RCW 41.12.090 and Rule 15 did apply here, which they do not, Plaintiff's allegations in Paragraphs 4.4-4.6 of the Complaint reflect that IPD fulfilled all notice requirements under these rules. IPD admits that Ms. Dixson was employed by the City for five years and was a commissioned officer. Except as so answered, IPD denies the remaining allegations of Paragraph 4.7.

4.8 IPD admits that the EEOC issued a letter on September 26, 2022, that included a notice of Plaintiff's right to sue following dismissal of her charge.

4.9 IPD admits the allegations in Paragraph 4.9.

4.10 IPD denies the allegations in Paragraph 4.10.

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V. CAUSE OF ACTION

FIRST CAUSE OF ACTION
Discriminatory Employment Practices
Violation of 42 42 U.S.C. §2000(e)

5.1 IPD reasserts its responses to the paragraphs above.

5.2 IPD denies that "Plaintiffs were performing competently the position they held with the Snohomish Regional Fire Department," as alleged in Paragraph 5.2. The remaining allegations in Paragraph 5.2 are legal conclusions, to which no response is required.

5.3 The allegations in Paragraph 5.3 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD denies that it engaged in any actions in violation of Title VII in conjunction with its COVID-19 vaccination policies.

5.4 The allegations in Paragraph 5.3 state legal conclusions, to which no response is required. IPD admits that it exempted Plaintiff from the vaccination requirement based on her communication of a sincerely held religious belief, that she was qualified for her position, and continued to perform the duties of her position until her separation date. IPD otherwise denies the allegations in Paragraph 5.4.

5.5 IPD admits that there is a dispute between Plaintiff and IPD concerning the City's inability to reasonably accommodate Plaintiff on the basis of her sincerely held religious beliefs without undue hardship, but otherwise denies the allegations in Paragraph 5.5.

SECOND CAUSE OF ACTION
Violation of Washington Law Against Discrimination
(RCW §49.60)

5.6 IPD reasserts its responses to the paragraphs above.

5.7 IPD denies the allegations with respect to the Snohomish Regional Fire Department, as alleged in Paragraph 5.7. The remaining allegations in Paragraph 5.7 are legal conclusions, to which no response is required.

5.8 IPD admits the allegations in Paragraph 5.8.

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5.9 IPD admits that it exempted Plaintiff from the vaccination requirement based on her communication that the requirement violated her sincerely held religious beliefs; and that it provided Plaintiff with additional time, should she choose to become vaccinated. Except as so admitted, IPD denies the allegations in Paragraph 5.9.

5.10 IPD admits that the City accommodated Plaintiff for over three months following implementation of the vaccine policy, but otherwise denies the allegations in Paragraph 5.10.

THIRD CAUSE OF ACTION
Fourteenth Amendment
Violations Due Process of Law
Violation of RCW 41.12 and Issaquah Civil Service Rules
(42.S.C. §1983)

5.11 IPD reasserts its responses to the paragraphs above.

5.12 The allegations in Paragraph 5.12 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD denies that RCW 41.12.090 is applicable to the separation of employment for failure to satisfy conditions of employment at issue here, but otherwise admits the allegations in Paragraph 5.12.

5.13 The allegations in Paragraph 5.13 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD denies the allegations in Paragraph 5.13, as it erroneously assumes applicability of RCW 41.12.090 and Rule 15 of the Issaquah Civil Service Rules to the non-disciplinary action taken here. IPD further denies these allegations because, even if RCW 41.12.090 and Rule 15 did apply here, which they do not, Plaintiff's allegations in Paragraphs 4.4-4.6 of the Complaint reflect that IPD fulfilled all notice requirements under these rules.

5.14 The allegations in Paragraph 5.14 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD denies the allegations in Paragraph 5.14, as it erroneously assumes applicability of RCW 41.12.090 and Rule 15 of the Issaquah Civil Service Rules to the non-disciplinary action taken here. IPD further denies these allegations because, even

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if RCW 41.12.090 and Rule 15 did apply here, which they do not, Plaintiff's allegations in Paragraphs 4.4-4.6 of the Complaint reflect that IPD fulfilled all due process requirements under these rules.

5.15 The allegations in Paragraph 5.15 are legal conclusions, to which no response is required. To the extent a response is deemed required, IPD admits that, at all relevant times, Mayor Pauly and Mr. Bobkiewicz acted under color of law and authority vested in them by the City, but IPD otherwise denies the allegations in Paragraph 5.15.

VI. PRAYER FOR RELIEF

IPD therefore denies that Plaintiff is entitled to any relief in this matter.

AFFIRMATIVE DEFENSES

As affirmative defenses, IPD asserts and states as follows:

1. Plaintiff has failed in whole or in part to state a claim on which relief can be granted.

2. Plaintiff has suffered no damages by IPD and/or has failed to mitigate damages.

3. Plaintiff's requested accommodation imposes an undue hardship.

4. Plaintiff's requested accommodation poses a direct threat to IPD, its employees, and the public.

5. Mayor Pauly and Mr. Bobkiewicz are entitled to qualified immunity from Plaintiff's claims.

6. Plaintiff has failed to exhaust administrative remedies against Mayor Pauly and Mr. Bobkiewicz.

7. Plaintiff has failed to name the proper party as defendant, as the Issaquah Police Department is not a legal entity capable of being sued.

8. IPD reserves the right to add, supplement, modify, change, or amend any or all of their Affirmative Defenses as the facts and circumstances become known through discovery and/or investigation.

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PRAYER FOR RELIEF

WHEREFORE, Defendant IPD prays:

1. The Complaint against Defendants be dismissed with prejudice;

2. The IPD be awarded their reasonable attorneys' fees and costs in accordance with 42 U.S.C. § 2000e-5k; and

3. That IPD be awarded such other and further relief as the Court deems just and equitable.

DATED this 9th day of February, 2023.

Respectfully submitted,

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